

AMENDMENT AND BASIC STRUCTURE

CONSTITUTIONAL CHANGE: FLEXIBLE ROUTES → ARTICLE 368 PROCEDURE: SEPARATE → FEDERAL RATIFICATION: THE EXACT → FROM SHANKARI PRASAD (1951) → BASIC-STRUCTURE ELEMENTS: NON-EXHAUSTIVE AND → NINTH SCHEDULE: INSERTION IS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g8 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 CONSTITUTIONAL CHANGE: FLEXIBLE ROUTES, ENTRENCHED IDENTITY

CONSTITUTIONAL CHANGE FLEXIBLE ROUTES, ENTRENCHED IDENTITY SIMPLE MAJORITY OUTSIDE ARTICLE 368 +-- ORDINARY LEGISLATIVE POWER; LEGALLY NOT AN ARTICLE 368 ARTICLE 368 SPECIAL MAJORITY +-- MAJORITY OF TOTAL MEMBERSHIP OF EACH HOUSE

+-- AT LEAST TWO-THIRDS OF MEMBERS PRESENT AND VOTING SPECIAL MAJORITY + RATIFICATION BY AT LEAST HALF OF

CONSTITUTIONAL BASIS / ARTICLE

- CONSTITUTIONAL CHANGE
- SIMPLE MAJORITY OUTSIDE ARTICLE 368
- +-- ordinary legislative power; legally not an Article 368 amendment
- ARTICLE 368 SPECIAL MAJORITY

POWER / PROCEDURE

- +-- majority of total membership of each House
- +-- at least two-thirds of members present and voting
- SPECIAL MAJORITY + RATIFICATION BY AT LEAST HALF OF STATES only for the exact federal proviso subjects
- POWER DISTINCTION ordinary legislative power → changes law within constitutional competence

CHECK / LIMIT

- constituent power → changes constitutional text by addition, variation or repeal
- IDENTITY LIMIT
- Parliament may amend every provision, but cannot destroy the Constitution's basic structure.
- MUST REMEMBER: Article 368 constituent power, the dual special majority, the exact federal

FEDERAL / RIGHTS IMPACT

- proviso list, mandatory assent, no joint sitting and simple-majority changes outside Article
- 368 must precede the basic-structure doctrine.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MUST REMEMBER: Article 368 constituent power, the dual special majority, the exact federal proviso list, mandatory assent, no joint sitting and simple-majority changes outside Article.

01

STAGE 01 ARTICLE 368 PROCEDURE: SEPARATE HOUSES, NO SHORTCUTS

ARTICLE 368 PROCEDURE SEPARATE HOUSES, NO SHORTCUTS AMENDMENT BILL MAY ORIGINATE IN EITHER HOUSE OF PARLIAMENT EACH HOUSE PASSES SEPARATELY MAJORITY OF TOTAL MEMBERSHIP TWO-THIRDS NO JOINT SITTING FAILURE IN EITHER HOUSE ENDS THE BILL

STATE RATIFICATION, IF PROVISIO APPLIES RESOLUTIONS BY AT LEAST PRESIDENT SHALL ASSENT

AMENDMENT BILL may originate in either House of Parliament may be introduced

by a minister or private member no prior Presidential recommendation is required

EACH HOUSE PASSES SEPARATELY majority of total membership two-thirds of members

present and voting abstentions reduce present-and-voting denominator, not total membership

NO JOINT SITTING → failure in either House ends the Bill

CONSTITUTIONAL BASIS / ARTICLE

- AMENDMENT BILL may originate in either House of Parliament may be introduced
- by a minister or private member no prior Presidential recommendation is required

POWER / PROCEDURE

- EACH HOUSE PASSES SEPARATELY majority of total membership two-thirds of members
- present and voting abstentions reduce present-and-voting denominator, not total membership

CHECK / LIMIT

- NO JOINT SITTING → failure in either House ends the Bill
- STATE RATIFICATION, IF PROVISIO APPLIES resolutions by at least half of State legislatures no time limit in Article 368; States cannot amend the Bill

FEDERAL / RIGHTS IMPACT

- PRESIDENT SHALL ASSENT → Constitution stands amended
- 2026 defeated Bill: total-membership limb passed; two-thirds limb failed.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 2026 defeated Bill: total-membership limb passed; two-thirds limb failed.

02

STAGE 02 FEDERAL RATIFICATION: THE EXACT ARTICLE 368 PROVISIO MAP

FEDERAL RATIFICATION THE EXACT ARTICLE 368 PROVISIO MAP RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED ARTICLES 54 AND 55 UNION AND STATE EXECUTIVE POWER ARTICLES 73 AND 162 SUPREME COURT AND HIGH COURTS CHAPTER IV OF PART V; CHAPTER V OF PART VI

RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the

Union and State executive power: Articles 73 and 162

Supreme Court and High Courts: Chapter IV of Part V

Chapter V of Part VI distribution of legislative powers: Chapter I of Part XI any

CONSTITUTIONAL BASIS / ARTICLE

- RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the President: Articles 54 and 55
- Union and State executive power: Articles 73 and 162

POWER / PROCEDURE

- Supreme Court and High Courts: Chapter IV of Part V
- Chapter V of Part VI distribution of legislative powers: Chapter I of Part XI any of the Lists

CHECK / LIMIT

- Article 368 itself
- NOT THE RULE every amendment with federal consequences every change concerning a Governor consent of every State

FEDERAL / RIGHTS IMPACT

- STATE ROLE ratify or refuse the passed text → no initiation, amendment or joint conference power.
- RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the President: Articles 54 and 55

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NOT THE RULE every amendment with federal consequences every change concerning a Governor consent of every State.

02

STAGE 02 FEDERAL RATIFICATION: THE EXACT ARTICLE 368 PROVISO MAP

FEDERAL RATIFICATION

THE EXACT ARTICLE 368 PROVISO MAP

RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED

ARTICLES 54 AND 55

UNION AND STATE EXECUTIVE POWER

ARTICLES 73 AND 162

SUPREME COURT AND HIGH COURTS

CHAPTER IV OF PART V; CHAPTER V OF PART VI

RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the

Union and State executive power: Articles 73 and 162

Supreme Court and High Courts: Chapter IV of Part V

Chapter V of Part VI distribution of legislative powers: Chapter I of Part XI any

CONSTITUTIONAL BASIS / ARTICLE

- RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the President: Articles 54 and 55
- Union and State executive power: Articles 73 and 162

POWER / PROCEDURE

- Supreme Court and High Courts: Chapter IV of Part V
- Chapter V of Part VI distribution of legislative powers: Chapter I of Part XI any of the Lists

CHECK / LIMIT

- Article 368 itself
- NOT THE RULE every amendment with federal consequences every change concerning a Governor consent of every State

FEDERAL / RIGHTS IMPACT

- STATE ROLE ratify or refuse the passed text → no initiation, amendment or joint conference power.
- RATIFICATION BY AT LEAST HALF OF STATES IS REQUIRED FOR CHANGE TO election of the President: Articles 54 and 55

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NOT THE RULE every amendment with federal consequences every change concerning a Governor consent of every State.

03

STAGE 03 FROM SHANKARI PRASAD (1951) TO MINERVA MILLS (1980): THE CORE DOCTRINE CHAIN

FROM SHANKARI PRASAD (1951) TO MINERVA MILLS (1980)

THE CORE DOCTRINE CHAIN

SHANKARI PRASAD (1951)

AMENDMENT IS NOT ARTICLE 13 "LAW"; FR MAY BE

SAJJAN SINGH (1964)

AMENDABILITY REAFFIRMED; REPORTED IN 1965 SCR

I.C. GOLAKNATH (1967)

PARLIAMENT CANNOT AMEND FUNDAMENTAL RIGHTS

SHANKARI PRASAD (1951) → amendment is not Article 13 "law"; FR may be amended

Sajjan Singh (1964) → amendability reaffirmed; reported in 1965 SCR

I.C. GOLAKNATH (1967) → Parliament cannot amend Fundamental Rights

1971 24TH AMENDMENT → constituent power and mandatory assent affirmed

1971 25TH AMENDMENT → Article 31C and property-related changes

CONSTITUTIONAL BASIS / ARTICLE

- SHANKARI PRASAD (1951) → amendment is not Article 13 "law"; FR may be amended
- Sajjan Singh (1964) → amendability reaffirmed; reported in 1965 SCR
- I.C. GOLAKNATH (1967) → Parliament cannot amend Fundamental Rights

POWER / PROCEDURE

- 1971 24TH AMENDMENT → constituent power and mandatory assent affirmed
- 1971 25TH AMENDMENT → Article 31C and property-related changes
- KESAVANANDA BHARATI (1973) → every provision amendable; basic structure cannot be damaged

CHECK / LIMIT

- INDIRA NEHRU GANDHI V. RAJ NARAIN (1975) → free and fair elections / judicial review protect democracy
- 1976 42ND AMENDMENT → attempted unlimited amending power
- MINERVA MILLS (1980) → limited amending power and FR-DPSP harmony protected

FEDERAL / RIGHTS IMPACT

- Waman Rao (1980) → cut-off fixed; reported in 1981 SCR
- I.R. COELHO (2007) → post-cut-off insertions face basic-structure impact review
- FORMULA: amend the Constitution → do not destroy its constitutional identity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FORMULA: amend the Constitution → do not destroy its constitutional identity.

04

STAGE 04 BASIC-STRUCTURE ELEMENTS: NON-EXHAUSTIVE AND CASE-ATTRIBUTED

BASIC-STRUCTURE ELEMENTS

NON-EXHAUSTIVE AND CASE-ATTRIBUTED

BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED

METHOD IDENTIFY THE AMENDMENT

IDENTIFY THE PROTECTED FEATURE

PROVE DAMAGE, NOT POLICY DISLIKE

KESAVANANDA BHARATI (1973) DID NOT SUPPLY ONE UNANIMOUS, EXHAUSTIVE

CONSTITUTIONAL BASIS / ARTICLE

- BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED CONSTITUTIONAL LIST supremacy of the
- Constitution republican and democratic government secularism federalism separation of powers rule of law judicial

POWER / PROCEDURE

- review independence of the judiciary free and fair elections dignity, liberty and equality within
- the rights architecture harmony and balance between Fundamental Rights and DPSP limited amending power

CHECK / LIMIT

- METHOD identify the amendment → identify the protected feature → prove damage, not policy dislike
- TRAP: Kesavananda Bharati (1973) did not supply one unanimous, exhaustive catalogue.

FEDERAL / RIGHTS IMPACT

- BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED CONSTITUTIONAL LIST supremacy of the
- Constitution republican and democratic government secularism federalism separation of powers rule of law judicial

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Kesavananda Bharati (1973) did not supply one unanimous, exhaustive catalogue.

05

STAGE 05 NINTH SCHEDULE: INSERTION IS NOT IMMUNITY AFTER THE 1973 CUT-OFF

NINTH SCHEDULE

INSERTION IS NOT IMMUNITY AFTER THE 1973 CUT-OFF

FIRST AMENDMENT, 1951

ARTICLE 31B + NINTH SCHEDULE PROTECT LISTED LAWS FROM

WAMAN RAO (1980)

24 APRIL 1973 BECOMES THE CONTROLLING CUT-OFF

I.R. COELHO (2007) POST-CUT-OFF INSERTIONS ARE REVIEWABLE COURT TESTS

OUTCOME REVIEWABLE

FIRST AMENDMENT, 1951

Article 31B + Ninth Schedule protect listed laws from specified rights challenge

Waman Rao (1980)

24 April 1973 becomes the controlling cut-off

I.R. COELHO (2007) post-cut-off insertions are reviewable court tests impact on Part III rights forming

CONSTITUTIONAL BASIS / ARTICLE

- FIRST AMENDMENT, 1951
- Article 31B + Ninth Schedule protect listed laws from specified rights challenge
- Waman Rao (1980)

POWER / PROCEDURE

- I.R. COELHO (2007) post-cut-off insertions are reviewable court tests impact on Part III rights forming part of basic structure
- OUTCOME reviewable != automatically invalid listed != permanently immune

CHECK / LIMIT

- 2 identify affected right / basic feature
- 3 examine actual constitutional damage
- 4 state the remedy accordingly

FEDERAL / RIGHTS IMPACT

- (1951), Sajjan Singh (1964), Golak Nath, the 24th Amendment, Kesavananda Bharati (1973),
- Indira Nehru Gandhi v. Raj Narain (1975), Minerva Mills (1980), Waman Rao

- BASIC STRUCTURE IS A JUDICIAL DOCTRINE, NOT A CLOSED CONSTITUTIONAL LIST supremacy of the
- Constitution republican and democratic government secularism federalism separation of powers rule of law judicial

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Kesavananda Bharati (1973) did not supply one unanimous, exhaustive catalogue.

24 APRIL 1973 BECOMES THE CONTROLLING CUT-OFF

OUTCOME REVIEWABLE

FEDERAL / RIGHTS IMPACT

- (1951), Sajjan Singh (1964), Golak Nath, the 24th Amendment, Kesavananda Bharati (1973),
- Indira Nehru Gandhi v. Raj Narain (1975), Minerva Mills (1980), Waman Rao (1980), Bommai,
- Coelho, NJAC and Anjum Kadari (2024).

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indira Nehru Gandhi v. Raj Narain (1975), Minerva Mills (1980), Waman Rao (1980), Bommai,

ORDINARY STATUTE CANNOT BE INVALIDATED ONLY BECAUSE IT OFFENDS

EXAM CORRECTION WRITE "VIOLATES ARTICLE X EMBODYING THE FEATURE"

FEDERAL / RIGHTS IMPACT

- CONSTITUTIONAL AMENDMENT directly tested against basic structure under Article 368 doctrine
- ORDINARY STATUTE cannot be invalidated only because it offends an undefined basic feature invalidity must be traced to

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXAM CORRECTION write "violates Article X embodying the feature", not merely "violates basic structure".

106TH AMENDMENT

S.O. 1922(E), 16 APRIL 2026 COMMENCED THE FRAMEWORK

FEDERAL / RIGHTS IMPACT

- STATUS RULE date + source + legal stage → no proposal presented as law.
- 131ST AMENDMENT BILL, 2026 introduced 16 April; negated 17 April

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS RULE date + source + legal stage → no proposal presented as law.

STAGE 08

07

STAGE 07 CURRENT EVIDENCE: DEFEATED PROPOSAL VERSUS COMMENCED FRAMEWORK

CURRENT EVIDENCE DEFEATED PROPOSAL VERSUS COMMENCED FRAMEWORK 131ST AMENDMENT BILL, 2026 INTRODUCED 16 APRIL; NEGATIVED 17 298 AYES 230 NOES 528 PRESENT AND VOTING PROPOSED 850 CEILING NEVER BECAME 106TH AMENDMENT

S.O. 1922(E), 16 APRIL 2026 COMMENCED THE FRAMEWORK

CONSTITUTIONAL BASIS / ARTICLE

- 131ST AMENDMENT BILL, 2026 introduced 16 April; negatived 17 April
- 298 ayes / 230 noes / 528 present and voting proposed 850 ceiling never became law proves both Article 368 majority limbs must pass

POWER / PROCEDURE

- 106TH AMENDMENT
- S.O. 1922(E), 16 April 2026 commenced the framework

CHECK / LIMIT

- Article 334A still requires publication of relevant first-post-commencement census figures
- delimitation for that purpose must follow commenced != operational reservation

FEDERAL / RIGHTS IMPACT

- STATUS RULE date + source + legal stage → no proposal presented as law.
- 131ST AMENDMENT BILL, 2026 introduced 16 April; negatived 17 April

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STATUS RULE date + source + legal stage → no proposal presented as law.

08

STAGE 08 DOCTRINE EVALUATION: GUARDIAN OF IDENTITY OR JUDICIAL SUPREMACY?

DOCTRINE EVALUATION GUARDIAN OF IDENTITY OR JUDICIAL SUPREMACY? CRITICISM DOCTRINE IS JUDICIALLY INFERRED AND NON-EXHAUSTIVE UNELECTED JUDGES ARTICLE 368 IS A CONSTITUTION-CREATED, LIMITED POWER DEMOCRACY INCLUDES MINERVA MILLS (1980)

LIMITED POWER CANNOT MAKE ITSELF UNLIMITED DISCIPLINED REVIEW TEXTUAL FOUNDATION SETTLED PRECEDENT

CONSTITUTIONAL BASIS / ARTICLE

- CRITICISM doctrine is judicially inferred and non-exhaustive unelected judges review elected super-majorities open-ended features can create uncertainty
- Article 368 is a Constitution-created, limited power democracy includes future elections, rights, federal voice and independent review

POWER / PROCEDURE

- Minerva Mills (1980): limited power cannot make itself unlimited
- DISCIPLINED REVIEW textual foundation → settled precedent → actual damage → narrow remedy

CHECK / LIMIT

- VERDICT reasoned, bounded review is legitimate; feature language must not become a policy veto.
- CRITICISM doctrine is judicially inferred and non-exhaustive unelected judges review elected super-majorities open-ended features can create uncertainty

FEDERAL / RIGHTS IMPACT

- Article 368 is a Constitution-created, limited power democracy includes future elections, rights, federal voice and independent review
- Minerva Mills (1980): limited power cannot make itself unlimited

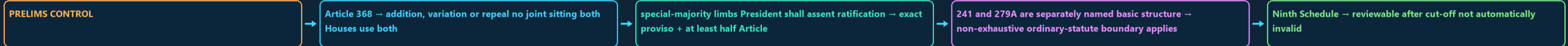
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT reasoned, bounded review is legitimate; feature language must not become a policy veto.

09

STAGE 09 PRELIMS TRAPS AND VERIFIED PYQ CONTROL

PRELIMS TRAPS AND VERIFIED PYQ CONTROL PRELIMS CONTROL ARTICLE 368 ADDITION, VARIATION OR REPEAL NO JOINT SITTING BOTH HOUSES EXACT PROVISO + AT LEAST HALF ARTICLE 241 AND NON-EXHAUSTIVE ORDINARY-STATUTE BOUNDARY APPLIES NINTH SCHEDULE

REVIEWABLE AFTER CUT-OFF NOT AUTOMATICALLY INVALID



CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS CONTROL
- Article 368 → addition, variation or repeal no joint sitting both Houses use both
- special-majority limbs President shall assent ratification → exact proviso + at least half Article

POWER / PROCEDURE

- 241 and 279A are separately named basic structure → non-exhaustive ordinary-statute boundary applies
- Ninth Schedule → reviewable after cut-off not automatically invalid
- VERIFIED PYQS

CHECK / LIMIT

- 2 Mains: 2019 Q12 and 2025 Q12
- 8 Prelims: 2018 Q5; 2019 Q45/Q47; 2020 Q13; 2022 Q13; 2023 Q34; 2024 Q66; 2025 Q58
- Official local keys: 2024 Q66 = D; 2025 Q58 = A. Earlier keys are explicitly inferred.

FEDERAL / RIGHTS IMPACT

- CURRENT TRAPS
- 131st Bill = defeated proposal
- 106th Amendment = commenced, not operational.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Official local keys: 2024 Q66 = D; 2025 Q58 = A. Earlier keys are explicitly inferred.

10

STAGE 10 MARKS-SCALED MAINS EXECUTION: 10, 15 AND 20 MARKS

MARKS-SCALED MAINS EXECUTION 10, 15 AND 20 MARKS 10 MARKS 150 WORDS THESIS 3-4 DIMENSIONS 2-3 EVIDENCE UNITS 15 MARKS 250 WORDS PROCEDURE AND SUBSTANTIVE LIMIT

10 MARKS / 150 WORDS thesis → 3-4 dimensions → 2-3 evidence units → qualification

15 MARKS / 250 WORDS procedure and substantive limit → 4-6 Articles/cases → application → 20 MARKS / 250-300 WORDS design → chronology → applications → current evidence criticism/defence → EXECUTION RULE claim → named evidence → analysis → qualification compress by demand; do not

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS thesis → 3-4 dimensions → 2-3 evidence units → qualification → verdict
- 15 MARKS / 250 WORDS procedure and substantive limit → 4-6 Articles/cases → application → evaluation → verdict

POWER / PROCEDURE

- 20 MARKS / 250-300 WORDS design → chronology → applications → current evidence criticism/defence → nuanced verdict
- EXECUTION RULE claim → named evidence → analysis → qualification compress by demand; do not dump every case or basic feature

CHECK / LIMIT

- FINAL LINE
- Article 368 permits transformation within constitutional identity.

FEDERAL / RIGHTS IMPACT

- Parliament may amend, but cannot destroy or replace the Constitution.
- 10 MARKS / 150 WORDS thesis → 3-4 dimensions → 2-3 evidence units → qualification → verdict

- special-majority limbs President shall assent ratification → exact proviso + at least half Article

10th Schedule → reviewable after cut-off not automatically invalid

- VERIFIED PYQS

2025 Q58

- Official local keys: 2024 Q66 = D; 2025 Q58 = A. Earlier keys are explicitly inferred.

- 106th Amendment = commenced, not operational.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Official local keys: 2024 Q66 = D; 2025 Q58 = A. Earlier keys are explicitly inferred.

10

STAGE 10

MARKS-SCALED MAINS EXECUTION: 10, 15 AND 20 MARKS

MARKS-SCALED MAINS EXECUTION

10, 15 AND 20 MARKS

10 MARKS

150 WORDS THESIS

3-4 DIMENSIONS

2-3 EVIDENCE UNITS

15 MARKS

250 WORDS PROCEDURE AND SUBSTANTIVE LIMIT

10 MARKS / 150 WORDS thesis → 3-4 dimensions → 2-3 evidence units → qualification

15 MARKS / 250 WORDS procedure and substantive limit → 4-6 Articles/cases → application →

20 MARKS / 250-300 WORDS design → chronology → applications → current evidence criticism/defence →

EXECUTION RULE claim → named evidence → analysis → qualification compress by demand; do not

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS thesis → 3-4 dimensions → 2-3 evidence units → qualification → verdict
- 15 MARKS / 250 WORDS procedure and substantive limit → 4-6 Articles/cases → application → evaluation → verdict

POWER / PROCEDURE

- 20 MARKS / 250-300 WORDS design → chronology → applications → current evidence criticism/defence → nuanced verdict
- EXECUTION RULE claim → named evidence → analysis → qualification compress by demand; do not dump every case or basic feature

CHECK / LIMIT

- FINAL LINE
- Article 368 permits transformation within constitutional identity.

FEDERAL / RIGHTS IMPACT

- Parliament may amend, but cannot destroy or replace the Constitution.
- 10 MARKS / 150 WORDS thesis → 3-4 dimensions → 2-3 evidence units → qualification → verdict

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXECUTION RULE claim → named evidence → analysis → qualification compress by demand; do not dump every case or basic feature.

11

STAGE 11

CURRENT AMENDMENT-STATUS CONTROL: PROPOSAL, COMMENCEMENT AND OPERATION

CURRENT AMENDMENT-STATUS CONTROL

PROPOSAL, COMMENCEMENT AND OPERATION

ANJUM KADARI (2024) INSC 831

NO FREE-STANDING BASIC-STRUCTURE ATTACK ON ORDINARY LAW

131ST AMENDMENT BILL 2026

DEFEATED PROPOSAL; NOT LAW OR PRECEDENT

S.O. 1922(E), 16 APR 2026

106TH AMENDMENT COMMENCED

ANJUM KADARI (2024) INSC 831 → no free-standing basic-structure attack on ordinary law

131ST AMENDMENT BILL 2026 → defeated proposal; not law or precedent

S.O. 1922(E), 16 APR 2026 → 106TH AMENDMENT commenced

ARTICLE 334A → operation awaits specified census publication plus delimitation

RULE: enactment, commencement and operational effect are distinct legal events.

CONSTITUTIONAL BASIS / ARTICLE

- ANJUM KADARI (2024) INSC 831 → no free-standing basic-structure attack on ordinary law
- 131ST AMENDMENT BILL 2026 → defeated proposal; not law or precedent
- S.O. 1922(E), 16 APR 2026 → 106TH AMENDMENT commenced

POWER / PROCEDURE

- ARTICLE 334A → operation awaits specified census publication plus delimitation
- RULE: enactment, commencement and operational effect are distinct legal events.
- LEGAL/SOURCE LIMIT: Basic structure limits constitutional amendments, not ordinary statutes as a free-standing test.

CHECK / LIMIT

- The 131st Bill was defeated
- the 106th Amendment has commenced, while
- Article 334A still separates commencement from operation.

FEDERAL / RIGHTS IMPACT

- ARTICLE 334A → operation awaits specified census publication plus delimitation

MECHANISM / VERDICT — RULE: enactment, commencement and operational effect are distinct legal events.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: enactment, commencement and operational effect are distinct legal events.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

17. AMENDMENT VERSUS REPLACEMENT

18. COMPARATIVE UNCONSTITUTIONAL-CONSTITUTIONAL-AMENDMENT DOCTRINE

19. STATE RATIFICATION AS ASYMMETRIC FEDERALISM

20. INSTITUTIONAL RESTRAINT AFTER ANJUM KADARI (2024)

[ANALYSIS] AN "AMENDMENT" PRESUPPOSES CONTINUITY OF THE CONSTITUTION BEFORE

IF THE OLD IDENTITY DISAPPEARS, THE ACT RESEMBLES REPLACEMENT

[FACT] JUSTICE H.R. KHANNA'S KESAVANANDA BHARATI (1973) REASONING EMPHASISED

OPTIONAL DOCTRINE / CASE

- 17. Amendment versus replacement
- 18. Comparative unconstitutional-constitutional-amendment doctrine
- 19. State ratification as asymmetric federalism
- 20. Institutional restraint after Anjum Kadari (2024)

ADVANCED LIMIT

- [ANALYSIS] An "amendment" presupposes continuity of the Constitution before and after change.
- If the old identity disappears, the act resembles replacement or constituent founding rather than amendment.
- [FACT] Justice H.R. Khanna's Kesavananda Bharati (1973) reasoning emphasised survival of the old Constitution without loss of identity.
- [ANALYSIS] This supplies the doctrine's conceptual core: Article 368 can revise institutions, powers and

COMPARATIVE NUANCE

- rights, but cannot use a constituted power to abolish the framework that created it.
- [LIMIT] "Identity" is not a licence to constitutionalise every historical practice.
- The protected identity must be derived from the Constitution's text, structure, history and settled precedent.
- [FACT] Germany's Basic Law contains an express eternity clause protecting specified fundamentals from amendment.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels

AMENDMENT AND BASIC STRUCTURE • TILE 5/5 • same master rows 8918-12152 of 12152 • end